

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 9, 2026
8:30 a.m./1:30 p.m.

10. JENNIFER WYMAN RUSH V. SETH WYMAN RUSH

22FL0106

On March 2, 2026, Respondent filed a Request for Order (RFO) for child support orders. He filed his Income and Expense Declaration concurrently therewith. All required documents were mail served on March 4, 2026.

This is a post-judgment request for orders and as such, it was required to be personally served or, if served by mail, Respondent was required to complete and file a Declaration Regarding Address Verification – Post Judgment Request to Modify a Child Custody, Visitation, or Child Support Order, which he has not done. See Fam. Code § 215. Nevertheless, Petitioner filed and served her Responsive Declaration to Request for Order and her Income and Expense Declaration on June 22nd thereby waiving any defect in service.

Respondent asks the court to modify the current child support order utilizing his disability payment amount and Petitioner's monthly IHSS caregiver income. He further asks the court to remove the bonus table entirely.

Petitioner asks the court to deny Respondent's request for support orders. Instead, she asks that Petitioner be imputed with income and ordered to seek work. She further requests the court make a determination as to arrears. Finally, Petitioner requests an order for Section 2030 attorney's fees in the amount of \$7,500.

Family Code sections 3900 et. seq. codifies the general obligation of both parties to support their minor children and adult dependent children. The court maintains broad discretion in determining the amount of child support based on each party's earning capacity. See Fam. Code § 4050. In doing so, the court has the ability to impute an unemployed, or under employed party with income commensurate with his or her earning capacity. *State of Oregon v. Vargas*, 70 Cal. App. 4th 1123 (1999). Such imputation is warranted where the parent has the ability and opportunity to work but simply lacks the willingness to do so. *In re Marriage of Regnery*, 214 Cal. App. 3d 1367 (1989).

Here, Respondent has not submitted any evidence to support his contention that he actually lacks the ability to work and earn an income to support his children. Accordingly, Respondent is ordered to make a diligent job search effort for jobs for which he is qualified. The court further orders Respondent to apply for a minimum of 5 jobs per week and to provide proof of said applications to Petitioner on a monthly basis, until he has secured stable employment. The court continues the matter to October 8th at 8:30 a.m. in Department 5 to receive an update on Respondent's job search efforts.

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Pending the review hearing, the court is temporarily setting child support to \$0. However, the court reserves jurisdiction to award support back to the date of filing the RFO. Respondent is cautioned that should he fail to obtain full-time employment by the date of the review hearing, the court may choose to impute him with full-time income commensurate with his prior income.

The court is reserving jurisdiction on the issue of arrears pending the review hearing.

Regarding the request for Section 2030 attorney's fees, the request is denied. "[T]o request attorney's fees and costs, a party must complete, file and serve the following documents:...Request for Attorney's Fees and Costs Attachment (form FL-319) or a comparable declaration that addresses the factors covered in form FL-319...[and a] personal declaration in support of the request for attorney's fees and costs, either using Supporting Declaration for Attorney's Fees and Costs Attachment (form FL-158) or a comparable declaration that addresses the factors covered in form FL-158..." Cal. Rule of Ct. 5.427(b)(1). Petitioner has not filed either a form FL-319, an FL-158, or a declaration covering the necessary factors for the court to rule on a request for attorney's fees. Petitioner's request for attorney's fees is therefore denied due to her failure to file the requisite documentation.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #10: RESPONDENT HAS NOT SUBMITTED ANY EVIDENCE TO SUPPORT HIS CONTENTION THAT HE ACTUALLY LACKS THE ABILITY TO WORK AND EARN AN INCOME TO SUPPORT HIS CHILDREN. ACCORDINGLY, RESPONDENT IS ORDERED TO MAKE A DILIGENT JOB SEARCH EFFORT FOR JOBS FOR WHICH HE IS QUALIFIED. THE COURT FURTHER ORDERS RESPONDENT TO APPLY FOR A MINIMUM OF 5 JOBS PER WEEK AND TO PROVIDE PROOF OF SAID APPLICATIONS TO PETITIONER ON A MONTHLY BASIS, UNTIL HE HAS SECURED STABLE EMPLOYMENT. THE COURT CONTINUES THE MATTER TO OCTOBER 8TH AT 8:30 A.M. IN DEPARTMENT 5 TO RECEIVE AN UPDATE ON RESPONDENT'S JOB SEARCH EFFORTS.

PENDING THE REVIEW HEARING THE COURT IS TEMPORARILY SETTING CHILD SUPPORT TO \$0. THE COURT RESERVES JURISDICTION TO AWARD SUPPORT BACK TO THE DATE OF FILING THE RFO. RESPONDENT IS CAUTIONED THAT SHOULD HE FAIL TO OBTAIN FULL-TIME EMPLOYMENT BY THE DATE OF THE REVIEW HEARING, THE COURT

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MAY CHOOSE TO IMPUTE HIM WITH FULL-TIME INCOME COMMENSURATE WITH HIS PRIOR INCOME.

THE COURT IS RESERVING JURISDICTION ON THE ISSUE OF ARREARS PENDING THE REVIEW HEARING.

REGARDING THE REQUEST FOR SECTION 2030 ATTORNEY'S FEES, THE REQUEST IS DENIED FOR FAILURE TO FILE THE PROPER DOCUMENTATION.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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**11. COUNTY OF EL DORADO V. LOGAN VILAYVONG VANSEEINDREI (OTHER PARENT:
LAYLENY ROSETE) 25FL0715**

Other Parent filed a Request for Order (RFO) on May 13, 2026, requesting orders regarding maintaining medical insurance for the minor. Proof of Service shows both Petitioner and Respondent were personally served on May 29th and May 18th, respectively.

Petitioner filed a Responsive Declaration on June 10, 2026. Parties were served on June 15, 2026. Petitioner requests the matter be heard in Department 10 before the Child Support Commissioner pursuant to Family Code section 4251.

Respondent has not filed a Responsive Declaration.

The court finds good cause to continue the matter to August 24th at 8:30 a.m. in Department 10.

All prior orders not in conflict with this order remain in full force and effect.

TENTATIVE RULING #11: THE COURT FINDS GOOD CAUSE TO CONTINUE THE MATTER TO AUGUST 24TH AT 8:30 A.M. IN DEPARTMENT 10. ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN FULL FORCE AND EFFECT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.